

**YORK UNIVERSITY
OSGOODE HALL LAW SCHOOL**

**TORTS
LW 1020.04**

**Professor Suzanne Chiodo
Section B
Fall 2026**

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Class time: Tuesday 9:30-12:20pm (1005/1006)
Thursday 1:00-2:00pm (2009) (Group 1)
Thursday 2:00-3:00pm (2009) (Group 2)
Thursday 3:00-4:00pm (2009) (Group 3)

1. INTRODUCTION¹

Welcome to tort law! In this class, we will be learning about some civil (non-criminal) wrongs, and how their legal dimensions interact with the goals of our society and the workings of our everyday lives. Lectures will be primarily in-person, and you are encouraged to ask questions and share your ideas and observations. Along with readings for each class, we will also have discussions and exercises so you can develop and apply what you learn.

Please be sure to check eClass regularly for important course updates!

2. LEARNING OBJECTIVES

There are three main learning objectives to this course. The first is to learn about the fundamental doctrines of tort law. We will be looking primarily at negligence law, but we will also look at nuisance and intentional torts. The second is to learn about methods of common law reasoning, including reading and analyzing cases, distinguishing past decisions, and understanding the development of legal doctrine. The third is to learn to think critically about tort law, including social and political controversies, whom tort law favours and excludes, and tort law's role in our legal system.

By the end of the course, you should be able to:

- Understand, explain, and apply the fundamental principles of the law of: nuisance, battery and assault, and negligence;
- Analyze, critically evaluate, and apply judicial and common law reasoning; and
- Critically evaluate competing understandings of the law of torts.

¹ When putting this course outline together, I benefited from reviewing previous course outlines and receiving comments from various colleagues, including Jeffery Hewitt, Dan Priel, Jennifer Nadler, Kate Sutherland, Philip Girard, Robert Solomon, Erika Chamberlain, and others.

3. READINGS AND MATERIALS

The readings for this course are set out in detail in section 6 below, and are a combination of textbook readings, online case law, secondary materials, and relevant statutes. The contents of all materials referred to throughout this course are examinable.

The main textbook for this course is **Christopher Essert, Jason W Nevers, and Ernest J Weinrib (eds), *Tort Law: Cases and Materials*, 6th ed (Toronto: Emond, 2025).** This is available for purchase at the [York University bookstore](#) for the price of \$150-166 (not including tax). It can also be purchased directly from the [Emond website](#) for \$144-160 (not including tax and shipping). Last year's Torts students may also have used copies for purchase. As you will not have Internet access for the final exam, you will need to purchase a hard copy of this book.

While there are some changes between the 5th and 6th editions of the textbook, you will be able to access most of the necessary content in the 5th edition (from 2019). There are differences in pagination, but I can provide a conversion table should students require that.

Should I refer to cases in class that are not included in the textbook, I will provide case summaries or links on eClass in advance.

Further materials may be posted on eClass from time to time (and/or handed out in class). If materials are handed out in class, they will also be posted on eClass. Details of course materials can be found under each week as listed below. Where materials are not hyperlinked, they are available through the Osgoode Library or HeinOnline.

We will cover the list of topics and readings generally in the order listed, but some material might not be covered while other material might be added, depending on the pace of our progress. Some topics might be rearranged to accommodate guest speakers or other events. As much notice as possible will be provided to students.

4. FORMAT

(a) Lectures

Lectures will be designed to discuss, contextualize, and work through the various topics and materials and to highlight certain key issues and concepts. I expect students to attend and to be prepared critically to discuss and apply the topics and materials. As much as possible, group discussion and participation will be encouraged.

(b) Small Groups

Small groups, lasting one hour each on Thursday afternoons, are an opportunity to discuss conceptual issues in depth, as well as to practice applying what we have learned in the lecture to fact patterns. Applying the law to various fact patterns is what you will be doing in the final exam, so these small group sessions are excellent practice. In the last week of term, we will also be going through exams from prior years.

(c) Dean's Fellows

Dean's Fellows provide optional academic support which is intended to enrich students' experience in the course by assisting students when working through the course and preparing

for the final examination. Dean's Fellows are not teaching assistants, and as such, are not in a position to answer questions about substantive course content. Rather, Dean's Fellows can assist in developing studying and learning strategies and can provide important peer mentorship. Further details will be provided regarding Dean's Fellow sessions.

5. EVALUATION

(a) Practice Midterm

A midterm exam (lasting 70 minutes) will be held during our regular class time on Tuesday, October 13th. It will be a practice exam, designed to give you a basic familiarity with the format of the final exam, an opportunity to assess how well you understand the course material to that point, and an opportunity to hone your exam writing skills so that you are in a position on the final exam to convey as effectively as possible what you have learned. The midterm will not be assigned a grade and will not count toward the final grade.

For the midterm exam, please use your exam number beginning with M (M####). You can find your personal, confidential exam numbers on MyOsgoode at the Exams & Assignments button.

You will not have access to the Internet or any materials on your desktop during the midterm exam. You may bring in any printed materials you wish to use, including the course textbook, your summary, any case summaries, or other materials.

I will provide a model answer on eClass so that you can assess your exam responses against the model answer. We will also go through the midterm exam in class and I will be available for individual feedback (please email me for an appointment).

(b) Final Exam (90% of final grade)

Your final grade will be based on a 3-hour, open-book, final exam that will be held on Thursday, December 10, 2026. The exam will consist of several fact patterns. There will not be an essay question. We will go through similar fact patterns in class so that you are familiar with the format of the exam. The final exam will be worth **90% of the final grade.**

For the final exam, please use your exam number beginning with F (F#####).

You will not have access to the Internet or any materials on your desktop during the final exam, and you will not be able to access any digital reference materials (eBooks, digital summaries, online statutes). All reference materials you wish to use, including your summary, any case summaries, or other materials, must be printed on paper. You may also bring a hard copy of the course textbook into the exam.

Please note that you are responsible for all assigned course readings, regardless of whether they are discussed in detail in class. You are also responsible for the material discussed in class lectures and small groups. All of the materials in this course outline and posted on eClass are examinable.

(c) Feedback on Final Exam

If you would like to meet to discuss your exam after grades are released, please email me and we will set up an appointment. By the Academic Rules, a student has three weeks after grades

are released to make this request. Unless otherwise arranged, the meeting would take place over Zoom.

When you contact me to discuss your grade, I will send you a copy of the exam and your exam answers. Please read them in advance and come to the meeting with specific questions about the grading, as the purpose of meeting will not be a general exam review. Of course, you may cancel the meeting if your inspection of the exam and your answers leads you to no longer feel the need to meet.

(d) Participation (10% of final grade)

Over the course of the fall term, you will individually build a participation profile. Your participation profile, as discussed further below, consists of:

- In-person attendance – this course is predominantly in-person, meaning that in-person attendance is expected. I understand that sickness and other unexpected issues can arise; however, five or more unexplained² absences throughout the term will count against your participation mark.
- Active engagement with the class (through questions, discussion, or other means)
- Evidence that you have read the materials and prepared for class
- Participation in and leadership of sub-groups in the small group format

Participation is not merely attendance (so no arguing about how your participation mark might be less than 10% but you “had perfect attendance”). Attendance does matter and forms part of your participation profile. Attendance also matters so that you can actively participate in class, but it is not the same thing as participation. Participation includes your active engagement with the class. There will be opportunities to interact every class in both the larger group and in smaller weekly sessions because participation is more than asking questions to me. It is about interaction and engaging with the materials and each other. This can happen in larger and smaller format discussions.

This also means part of participation is an expectation that you will have read the assigned materials prior to class and attend prepared to engage in discussion. It is often clear to the rest of us if you have not read the materials. This will be particularly prevalent in the smaller in-class group discussions. Students will be expected to contribute intelligently to class discussions and evaluated for your general and thoughtful participation in the course as well as knowledge of the readings and materials. Quantity of contributions does not necessarily equate to quality of contributions.

In many small group sessions, we will be looking at fact patterns that have been posted on eClass in advance and working through them in sub-groups (approximately 7-8 students per sub-group). I may call upon you to lead a sub-group, which involves taking notes and then feeding back the sub-group’s answer to the small group. Students who work through the fact patterns in advance and come to the small group sessions prepared to contribute to their sub-group are more likely to get a strong participation grade.

² An explanation must consist of something unexpected that prevented your attendance in class. Sickness is a good explanation; “something came up” is not.

In sum, participation will be evaluated in a myriad of ways including small group (in-class) discussions, class participation, preparedness for class, and collegial engagement on the materials.

6. SCHEDULE OF TOPICS, DATES, AND READINGS

Tuesday, September 1 (lecture): Introduction to Tort Law

Philip H Osborne, "Introduction" in *The Law of Torts*, 6th ed (Toronto: Irwin, 2020) (24 pages)

Thursday, September 3 (small group): Purposes and Theories of Tort Law

Jules Coleman *et al*, "[Theories of the Common Law of Torts](#)" in *Stanford Encyclopedia of Philosophy* (2022) (15 pages)

Carol A Aylward, "Critical Race Theory" in *Canadian Critical Race Theory: Racism and the Law* (Halifax: Fernwood, 1999) (30 pages)

Tuesday, September 8 (lecture): Private Nuisance

Weinrib, *Tort Law: Cases and Materials*, 6th ed (Toronto: Emond, 2025), pages 1-54 (54 pages) ("Weinrib")

Thomas v Rio Tinto Alcan Inc, [2024 BCCA 62](#) at paras 43-87 (10 pages)

Smith v Inco, [2011 ONCA 628](#) (headnote only) (4 pages)

Case summary (to be posted on eClass):

- *Christie v Davey*, [1893] 1 Ch 316

Thursday, September 10 (small group): Private Nuisance

Fact pattern (to be posted on eClass)

Tuesday, September 15 (lecture): Intentional Torts – Battery & Assault

Weinrib 6th ed, pages 499-523, 534-548 (38 pages)

Ahluwalia v Ahluwalia, [2026 SCC 16](#) paras 145-150, 343-344 (CN: IPV) (5 pages)

Barker v Barker, [2022 ONCA 567](#), paras 1-2, 17-47, 137-164 (20 pages) (CN: institutional abuse)

Thursday, September 17 (small group): Intentional Torts – Battery & Assault

Fact pattern (to be posted on eClass)

Tuesday, September 22 (lecture): Duty of Care

Weinrib 6th ed, pages 117-135, 148-171, 212-219 (49 pages)

Thursday, September 24 (small group): Duty of Care

Fact pattern (to be posted on eClass)

Price v Smith & Wesson Corporation, [2025 ONCA 452](#) (leave to appeal to SCC denied) at paras 21-72 (20 pages)

Tuesday, September 29 (lecture): Breach of Duty – Standard of Care

Weinrib 6th ed, pages 58-65, 70-84, 86-101, 112-116 (41 pages)

Case summary (to be posted on eClass):

- *Paris v Stepney Borough Council* [1951] AC 367 (HL)

Thursday, October 1 (small group): Breach of Duty – Standard of Care

Fact pattern (to be posted on eClass)

The Queen (Can) v Saskatchewan Wheat Pool, [\[1983\] 1 SCR 205](#) (12 pages)

Blackwater v Plint, [2005 SCC 58](#) (18 pages) (CN: Residential schools and sexual abuse)

Mayo Moran, [“The Reasonable Person: A Conceptual Biography in Comparative Perspective”](#) (2010) 14 Lewis & Clark L Rev 1233, pages 1234-1249 (15 pages)

Tuesday, October 6 (lecture): Causation

Weinrib 6th ed, pages 280-284, 289-290, 292-302, 317-327, 364 (28 pages)

Arndt v Smith, [\[1997\] 2 SCR 539](#) (headnote only) (4 pages)

Resurfice Corp v Hanke, [2007 SCC 7](#) (headnote only) (2 pages)

Thursday, October 8 (small group): Review Class

Review of materials covered in the course so far – no additional readings

Tuesday, October 13 – Midterm

No additional readings

Thursday, October 15 – Deemed Monday (NO CLASS)

No class today

Tuesday, October 20 (lecture): Causation

Weinrib 6th ed, pages 302-317, 327-331 (20 pages)

Resler v Anglin, [2026 SCC 23](#) at paras 5-9 (Moreau J, for the majority) and 154-178 (Karakatsanis J, for the dissent) (13 pages)

Kent Roach, "[Blaming the Victim: Canadian Law, Causation, and Residential Schools](#)" (2014) 64:4 UTLJ 566 (30 pages) (CN: Residential schools)

Thursday, October 22 (small group): Causation

Fact pattern (to be posted on eClass)

Tuesday, October 27 (lecture): Remoteness

Weinrib 6th ed, pages 220-239, 244-276 (51 pages)

Mustapha v Culligan of Canada Ltd, [2008 SCC 27](#) (6 pages)

Palmer v Teva Canada Limited, [2024 ONCA 220](#) at paras 1-6, 53-69 (10 pages)

Thursday, October 29 (small group): Midterm Review

Midterm review (model answer will be posted on eClass)

Monday, November 2 – Friday, November 6: READING WEEK

Tuesday, November 10 (lecture): Recognizing New Torts

Ahluwalia v Ahluwalia, [2026 SCC 16](#), headnote (not including summary of Karakatsanis J's judgment and dissenting judgment), paras 65-95 (31 pages) (CN: intimate partner violence)

Caplan v Atas, [2021 ONSC 670](#), paragraphs 163-175 (4 pages)

Nevsun Resources Ltd v Araya, [2020 SCC 5](#), paragraphs 236-243 (3 pages)

Merrifield v Canada (Attorney General), [2019 ONCA 205](#), paragraphs 19-53 (5 pages)

Jones v Tsige, [2012 ONCA 32](#) (headnote only) (2 pages)

Thursday, November 12 (small group): Remoteness

Fact pattern (to be posted on eClass)

Margo Louise Foster, "[There was a High Court that Swatted a Fly... But Why? Mental Disability in the Negligent Infliction of Psychiatric Injury and the Decisions in *Mustapha v Culligan*](#)" (2009) 14 Appeal 37, pages 37-67 (30 pages)

Tuesday, November 17 (lecture): Defences and Damages

Weinrib 6th ed, pages 335-343; 699-716; 722-726 (30 pages)

Whiten v Pilot Insurance Co, [2002 SCC 18](#) (headnote only) (3 pages)

[*Blackwater v Plint*](#) (from breach of duty class), paragraphs 74-87 (4 pages) (CN: Residential Schools)

Kent Roach, [“Blaming the Victim: Canadian Law, Causation, and Residential Schools”](#) (2014) 64:4 UTLJ 566 at 578-584 (6 pages) (CN: Residential Schools)

Thursday, November 19 (small group): Defences and Damages

Fact pattern (to be posted on eClass)

Tuesday, November 24 (lecture): Review Class

Review of exams from prior years (to be posted on eClass)

Thursday, November 26 (small group): Review Class

General review of materials covered throughout the course – no additional readings

7. OSGOODE AND YORK ACADEMIC POLICIES

This section is required by Osgoode Hall Law School to be in every course outline. Students are expected to have read the whole section.

a. Academic Honesty and Integrity

Osgoode students are required to maintain high standards of academic integrity and are subject to the [York Senate Academic Conduct Policy and Procedures](#) and the relevant [Osgoode Academic Rules](#). Further information is available on the [York Academic Integrity](#) site.

The Senate Policy and Osgoode Academic Rules are also available via the *JD Students* part of the MyOsgoode website, proceeding through the “Student Handbooks” button, then “JD Academic Handbook”, and the finally the “Academic Rules” link.

All work presented for the purposes of grading (including final exams) should be in the student’s own words. Where someone else’s words, work, or ideas are relied upon, those sources should be cited (for the purposes of the final exam, students do not need to cite my lectures, slides, or in-class statements).

Special attention is drawn to the following three matters related to reliance on external persons, works, and/or technologies:

1) Unauthorized use of collaborative study materials

The provisions of the York Senate Policy on Academic Honesty on unauthorized collaboration

have been supplemented by Osgoode's "[Guidelines on use of Collaborative Study Materials in Examinations](#)", found [HERE](#). Students are strongly advised to read the Guidelines closely; knowledge of them will be assumed. Note a key bottom-line is that use of collaborative study materials in the ways and contexts set out in the Guidelines is prohibited unless explicitly permitted by the instructor and, then, only to the extent of that authorization.

2) Assistance from content-generating artificial intelligence (GenAI) and/or AI prohibited by the instructor

Use of AI is prohibited in this course unless and to the extent that the instructor permits it. At the moment, the only use permitted is for purposes of correction of grammar, idiom, punctuation, spelling and sentence mechanics (and nothing beyond).

The [Academic Conduct Policy and Procedures](#) contain rules on use of GenAI and AI more generally. Some key provisions are reproduced below to ensure no student is unaware of them:

Section 5.2.a.i., ii. & x:

Cheating – the attempt to gain an unfair advantage in an academic evaluation. Forms of cheating include but are not limited to:

- i. Using an undocumented or unreferenced content generator, including the use of text-, image-, code-, or video-generating artificial intelligence (AI);
- ii. Obtaining assistance by means of documentary, artificial intelligence technology, electronic or other aids that are restricted by the instructor (see Section 6.2.c);
- ...
- x. Submitting work prepared in collaboration with a third party when collaborative work on an assessment has not been authorized by the instructor/supervisor, and goes beyond correction of grammar, idiom, punctuation, spelling and sentence mechanics;

For the sake of caution "third party" in section 5.2.a.x. should be read to include use of tools like Word's spelling and grammar feature, Grammarly, and so on. Such tools are fine to use but they cannot "go beyond correction" any more than a human third party's assistance could. Because this provision is structured as prohibited-unless-authorized, students may not use such tools to essentially re-write drafts (if and when some tools develop such capacities) unless the instructor has enunciated a general course policy allowing such use.

Section 4:

Undocumented/Unreferenced: refers to undocumented and/or unreferenced quotes, passages, sources, and other missing or improper citation of work submitted for evaluation.

Section 6.2. & 3:

It is the responsibility of **students** to:

- ...
- c. follow their instructors' expectations for using text-, image-, code-, or video-generating artificial intelligence (AI); referencing sources; group work and

collaboration, and be proactive in pursuit of clarification and resources to support these expectations;

...

It is the responsibility of **course directors and graduate supervisors** to:

- b. communicate with and support students in following instructors' expectations for *using text-, image-, code-, or video-generating AI*; referencing sources; conducting group work and collaboration;

3) Plagiarism, unattributed paraphrasing and connections to improper use of AI

The York Senate Academic Conduct Policy and Procedures prohibit plagiarism in section 5.2.b.:

Plagiarism – the appropriation of the work of another whether published, unpublished or posted electronically, attributed or anonymous, without proper acknowledgement. This includes but is not limited to:

- i. Presenting all or part of another person's work or ideas as something one has produced where work includes, but is not restricted to, text, code, technical and creative production, paragraph and essay structure and organization, and other forms that constitute intellectual property;
- ii. Paraphrasing another's writing without proper citation;
- iii. Representing another's artistic, technical work or creation as one's own;
- iv. Reproducing without citation the student's own work originally presented elsewhere; and
- v. Failing to attribute sources, or failure to attribute sources properly.

Apart from section 5.2.b.i.'s relevance to use of AI (in terms of how AI can lead to "presenting ...another person's work or ideas as something one has produced"), students are especially urged to understand that paraphrasing without proper citation is plagiarism. There has always been a concern that some students do not sufficiently understand the need to cite to sources of paraphrases no less than directly quoted work. This problem may be growing. Of late, this is manifesting itself in students using extensive paraphrases, sometimes that go on for pages, but only citing to the source at or near the start or at or near the end – and sometimes sprinkling in a reference or two in between.

Apart from such extensive paraphrasing not being exemplary work, the moment a reader cannot know whether a given idea or thought is connected to a citation (because the citation is so distant from it) is the moment such paraphrasing also constitutes the academic offence of plagiarism for failure to properly attribute. Students are urged to take great care here, especially since there are reasons to worry that even instructor-authorized use of an AI tool can lead students to start producing substantial paraphrases of AI-generated text. Again, however poor such use of AI would be, it also comes with the risk of plagiarism if the student has not properly referenced the AI tool and any question(s) used to prompt the AI tool's answers, and/or has not documented by retaining the text of both the questions (and follow-up prompts) and the

answers given by AI. Thus, section 5.2.a.i. cheating by use of unreferenced and/or undocumented AI content generation can intersect with section 5.2.b. plagiarism.

b. Religious Observance

York University is committed to respecting the religious beliefs and practices of all members of the community, and making accommodations for observances of special significance to adherents. Should any of the dates relating to examinations or assignments for this course pose such a conflict for you, please let Assistant Dean, Students, Mya Rimón know within the first three weeks of class.

c. Students with Disabilities and Accommodation Needs

York University has a range of resources to assist students with physical, mental, and learning disabilities/challenges in achieving their educational objectives. Students with disabilities requiring accommodation in the classroom or in the examination or evaluation process are encouraged to identify themselves to [York's Student Accessibility Services](#) office or Osgoode's Office of Admissions & Student Services as soon as possible.

Students seeking accommodation in experiential education settings are encouraged to read the "Accommodation Information for Clinical & Intensive Program" handout provided to them with their enrolment offer. All requests for accommodation will be kept confidential.

Requests for accommodation for in-term work must be made, in writing, to either the instructor or to the Academic Accommodations Coordinator, Nicole Casey. Such requests must be made as soon as the need for accommodation arises and, barring exceptional circumstances, in advance of the deadline for the work.

Requests for accommodation for final examinations and final papers may only be made to and approved by the Assistant Dean, Students, Mya Rimón and must be made in advance of the examination date or final paper due date.

d. Other York University Policies, including Ethics Review Process

Further information concerning relevant York University academic policies, such as the Ethics Review Process for research involving human participants, is available online via the [University Secretariat](#).

e. Course-Specific Policies

This course seeks to embrace civility, diversity, inclusion, and respect. All students are expected to engage in class discussions and activities in ways that are civil, professional, informed, and that promote an inclusive and positive learning environment for all students. It will also be important to maintain a spirit of open-mindedness and a presumption of good faith when listening to others' comments and questions. We all have a responsibility to ensure this is a safe learning environment and share obligations under various codes of conduct at the [law school](#) and the [university](#).

Some of the readings or class content may be disturbing or triggering, especially to those who have experienced similar trauma in the past. If you need assistance identifying resources to support your wellbeing, please feel free to contact me or the Associate Dean (Students).

Students are not permitted to record any audio, video, or images from classes or office-hour appointments without the instructor's express permission.

Outside of class time, I am available to answer questions by email. I will aim to answer emails within 24 hours on weekdays and 48 hours on weekends. Please set out your question at the top of the email, and then follow it with a brief explanation as to how you came to the question and what you have done to try and answer it. If you do not hear from me within 48 hours, please resend with your original email and state at the top that you have not heard from me yet. I may anonymize your email question and post it on eClass along with my answer.

8. POLICIES REGARDING STREAMING AND RECORDING FOR IN-PERSON, REMOTE, AND HYFLEX (DUAL-DELIVERY) TEACHING AND LEARNING

a. Remote and Hyflex classes

In 2026-27, a handful of courses are being delivered fully remotely (i.e., using Zoom), partly remotely (blending in-person classes for the majority of the class with less frequent online classes or modules) or by Hyflex (dual-delivery). The Hyflex mode of delivery involves some students joining class in real-time from an online connection while the rest of the students are in-person in the physical classroom with the instructor.

Note, however, that instructors of all in-person courses have the discretion for pedagogical reasons to run some classes in a way that has students attending online, whether everyone is online including the instructor (fully remote on Zoom) or whether some are online with the instructor in the physical classroom with other students (Hyflex). The number of such classes is limited by Osgoode's definition of an in-person course as being a course that is predominantly and essentially in person.

b. Modes of Delivery, Streaming, and Recording

With respect to lecture classes in "courses" (as opposed to "seminars"), class sessions must be recorded – whatever mode in which they are being taught – in order to be in compliance with Osgoode's recording policy for lecture courses. For regular in-person lecture sessions, that means recording from the computer console at the front of the class of both the instructor's voice and the screen display using a platform called Panopto. If a given lecture class session is done in a synchronous remote mode (Zoom) or a Hyflex mode, it too must be recorded under Osgoode's recording policy.

Then, for any of these modes, it is left to the pedagogical judgment of the instructor as to whether the recording will be posted on eClass for all students in the course to access. Where an instructor decides not to make the recording of their lecture class available to all students in the class (as they are permitted to decide), the recording must nonetheless be made available to any student who has an accommodation that requires access to the recording.

As for seminars, there is no duty to record seminar sessions under Osgoode's policy but an instructor may record a class session (or indeed the whole course) if they wish. If they decide to, it is further in their discretion as whether to post the recording to the eClass site. As well, the above-mentioned discretion to have some classes that are not fully in-person – e.g., that are

fully remote on Zoom or optionally remote for students via Hyflex – also comes with a discretion (but no duty) to record and upload.

c. Consent and Protections

Whether in lecture classes of a course or in a seminar, activities for any class delivered synchronously online and any class delivered by Hyflex's dual-delivery method involve live streaming. They may also, and usually do, involve recording. They may further involve storing the recording online in order to make the recording available to the class, after the class has ended, on the eClass platform.

Images, audio, text/chat messaging that have been recorded may be used and/or made available by the University to students enrolled in the course and those supporting the course for the purpose of materials review, for assessment, etc. Recordings will be managed according to the University's Common Record Schedule and will be securely destroyed when no longer needed by the University. Your personal information is protected in accordance with York's [Policy on Access to Information and Protection of Privacy](#) and the [Freedom of Information and Protection of Privacy Act](#).

The University will use reasonable means to protect the security and confidentiality of the recorded information, but cannot provide a guarantee of such due to factors beyond the University's control, such as recordings being forwarded, copied, intercepted, circulated, disclosed, or stored without the University's knowledge or permission, or the introduction of malware into computer systems which could potentially damage or disrupt the computer, networks, and security settings. The University is not responsible for connectivity/technical difficulties or loss of data associated with your hardware, software, or Internet connection.

By engaging in course activities that involve recording, you are consenting to the use of your appearance, image, text/chat messaging, and voice and/or likeness in the manner and under the conditions specified herein.

In the case of a live stream recording during a remote class, if you choose not to have your image or audio recorded, you may disable the audio and video functionality. In the case of a live stream recording in a Hyflex (dual-delivery) class in which some students are in-person with the instructor and some students remote online, if you choose not to have your image or audio recorded, you may opt to attend the Hyflex class from the remote end, at which point you can disable the audio and video functionality.

In each such choice situation, the power to choose should be exercised against a background understanding that disabled audio and video can seriously affect the interactive dynamics of a class environment and the collective benefits of such interaction. Accordingly, if an instructor requests students not to turn off their cameras, students should not understand this as an order but as a considered preference based on serious reflection on pedagogy. You may still exercise your choice but are requested not to do so if turning off video or audio is more a matter of convenience than of principled objection to being seen or heard in a class.

d. Duties

You are not permitted to disclose the link to/URL of an event or an event session recording to anyone, for any reason. Recordings are available only to authorized individuals who have been

directly provided the above instructions/link for their use. Recordings for personal use, required to facilitate your learning and preparation of personal course/lecture notes, should not be made without the permission of the instructor or event coordinator and, further, should not be shared with others without the further permission of the instructor or event coordinator.

--- End of Course Outline ---